

In a motion under subdivision (a) relating to the production of electronically stored information, the party or affected person objecting to or opposing the production, inspection, copying, testing, or sampling of electronically stored information on the basis that the information is from a source that is not reasonably accessible because of the undue burden or expense shall bear the burden of demonstrating that the information is from a source that is not reasonably accessible because of undue burden or expense.

The court also has concerns that VW's supplemental responses to the subject requests does not comply with C.C.P. §2031.210(a)(1), as production was promised without a specified date, and this subsection requires a statement of willingness to comply "by the date set for this inspection", a date that had passed long before service of the supplemental responses, and which is now more than a year earlier than this hearing date.

Because the court cannot conclusively determine what documents Plaintiff requested for production that VW's supplemental responses promised to produce have or have not been produced, parties are to appear at hearing as scheduled, to clarify what documents requested in document requests 10, 16, 19 and 20 have still not yet been produced by VW. However, both counsel should also bring their calendars. The court anticipates the possible need to continue hearing to a later date, at which both counsel will be required to **personally** appear before the court, so that it can inquire further, and also direct and monitor as appropriate additional efforts by these counsel to try to informally resolve these disputes through in-person meet and confer communications.

DOMINGUEZ-MURIETTA , et al. v. FEDERAL EXPRESS CORPORATION, et al.
Case No. CU26-03140

Motion by Attorney Alivia Abreu/Wilshire Law Firm, PLC to be Relieved as Attorney of Record

TENTATIVE RULING

The motion is granted, with withdrawal effective only upon prompt service on the client of the signed order.

THE FINISHING LAB, ET AL. v. ALEXANDER DAAS OPTICIANS, ET AL.
Case No. SC25-00370

Motion to Transfer Venue

TENTATIVE RULING

Defendant Daas Luxury Optics, Inc.'s motion to transfer venue is denied.

There is no remedy to transfer a small claims action to a different venue. If a small claims court finds that an action was not commenced in the proper venue, it must, on its own motion, dismiss the action without prejudice. (Code Civ. Proc. § 116.370(c)(1).)

Additionally, the question of venue is outside the scope of Defendant's appeal. A defendant that did not appear at the small claims trial has no right to an appeal. (Code Civ. Proc. § 116.710(a).) Instead, the sole remedy for that defendant is to timely file a motion to set aside the judgment. (Code Civ. Proc. § 116.730(a).) If the motion is denied, "the defendant may appeal to the superior court ***only on the denial of the motion to vacate the judgment.***" (Code Civ. Proc. § 116.730(e), emphasis added.)

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